

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 09/02/2026

Case #	Case Name	Tentative
01249934	Thomas - Probate	TENTATIVE RULING Case: Thomas - Probate 01249934 Calendar No: 1 Date: 09/02/26 MOTION TO COMPEL RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (ROA 126) Petitioner Randall Sharp ("Petitioner"), in propria persona, moves to compel Administrator James Leestma (the "Administrator") to respond to Petitioner's document demand, set one. The motion is unopposed despite proof of service. The motion is GRANTED. The evidence before the court is that Petitioner propounded the document demand to the Administrator on 10/29/25. The parties met and conferred by telephone on 11/25/25. No response to the discovery has been served to date. Moving party need not show anything more to obtain an order compelling initial responses to a demand for production of documents. (Code of Civ. Proc. § 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906.) The Administrator is ordered to provide written responses to the document demand, set one, without objection, within 10 days of notice of this ruling, extended for method of service. The failure to comply with this order may result in evidentiary or other sanctions.

		The court notes that Petitioner served an identical document demand on the "Estate of Elaine C. Thomas," and there is an identical motion to compel responses from the Estate that is set for hearing on 9/9/26 at 1:30 PM in Department CM07. The Estate is not a separate entity. The proper procedure is to serve discovery on the Administrator for the Estate. Thus, the court ADVANCES the hearing on the Motion to Compel responses from the Estate (ROA 130) to today's date and DENIES it. The court further notes that Petitioner has filed two Motions to Deem Requests for Admission Admitted. (ROAs 112 and 118.) However, since the motions were filed as a "Notice," they were not set for hearing. To obtain a hearing date, Petitioner must resubmit the motions and pay the filing fees. Petitioner is ordered to serve a notice of this ruling on the Administrator.
		[Motion Type]
01469211	Collao – Conservatorship	TENTATIVE RULING Case: Collao – Conservatorship 01469211 Calendar No: 4 Date: 09/02/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 91) Attorney Frank O. Fox seeks to be relieved as counsel for Conservator Janet D. Allen. This motion initially came before the court on 7/1/26, at which time the motion was continued for compliance with California Rules of Court, Rule 3.1362 and Orange County Local Rule 601.21. Counsel has since fully complied. The motion to withdraw as counsel of record is GRANTED.

		Withdrawal is effective upon proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel (MC-053).
01532942	Fullerton - Other	TENTATIVE RULING Case: Fullerton - Other Probate 01532942 Calendar No: 6 Date: 09/02/26 MOTION TO EXPUNGE LIS PENDENS (ROA 27) Petitioner Felicia Hall ("Petitioner") moves to quash the notice of pendency of action recorded by Respondent Noah Fullerton ("Respondent") against the real property located in Hemet, California. (ROA 27.) A motion to expunge a lis pendens must be granted where a lis pendens is improper, either because: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32; Prob. Code, § 1000.) Unlike most other motions, when a motion to expunge is brought, the burden is on the party <u>opposing</u> the motion to both show the existence of a real property claim and the probable validity of that claim. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) Here, Respondent has not opposed this motion and, therefore, has not met his burden to show the existence of a real property claim or the probability of prevailing. Furthermore, Respondent has not asserted any claims whatsoever, as he has only filed a responsive pleading. (ROA 8.) The motion to expunge lis pendens is GRANTED.

		When ruling on a motion to expunge lis pendens, the court must award the prevailing party its reasonable attorney's fees and costs incurred in making or opposing the motion, unless the court finds either that: (1) the non-prevailing party acted with substantial justification; or (2) other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Such an award is to be made against the losing party only, not counsel. (<i>Doyle v. Superior Court</i> (1991) 226 Cal.App.3d 1355, 1359.) The court finds there was no substantial justification for the filing of the lis pendens. Since Respondent has not opposed this motion, the court reduces the "anticipated fees" from 4 hours to 1 hour. The court awards Petitioner reasonable attorney's fees of \$4,130.00 (\$350p/h x 11.8 hrs) payable by Respondent within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to serve notice of this ruling and/or may elect to prepare, file, and serve a proposed order after hearing.
01437433	Compas - Trust	TENTATIVE RULING Case: Compas - Trust 01437433 Calendar No: 7 Date: 09/02/26 MOTIONS TO COMPEL FURTHER RESPONSES TO INTERROGATORIES AND MOTION DEEM REQUESTS FOR ADMISSION ADMITTED (ROAs 32, 34, 35) Petitioner Patricia Compas ("Petitioner") brings the following motions: (1) motion for an order compelling answers to form interrogatories, set one (ROA 32); (2) motion for an order compelling answers to special interrogatories, set one (ROA 35); and (3) motion for an order deeming requests for admission admitted. The evidence before the court is that Petitioner's counsel propounded the aforementioned discovery on 9/3/25. Responses to the discovery requests were initially due 10/8/25. Five extensions were requested and granted.

		Thereafter, counsel for Respondent made several promises that the discovery responses were forthcoming. No responses had been served as of the date the motions were filed (i.e., 12/29/25). Moving party need not show anything more to obtain an order compelling responses to interrogatories. (Code Civ. Proc., § 2030.290.) Thus, the motions to compel responses to form and special interrogatories (ROAs 32 and 35) are GRANTED. Code of Civil Procedure section 2033.280 (c) states that “the court shall make the order [to deem requests for admission admitted], unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” Respondent served responses to requests for admission on 8/26/26 before the hearing on this motion. Thus, the motion to deem requests for admission admitted is DENIED. Pursuant to Code of Civil Procedure section 2030.290(c) and 2033.280(c), the court imposes reasonable monetary sanctions of \$719.40 per motion (i.e., 1.5 hours per motion, plus filing fees) for a total of \$2,158.20 payable by Respondent to the Law Offices of Daniel J. Cooper within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to give notice of ruling.
		TENTATIVE RULING Case: Calendar No.: Date: _____

